



ILLEGAL EVIDENCE IS FRUIT OF THE POISONOUS TREE

THE EXCLUSIONARY RULE (1914)

IN CONTEXT

FOCUS

Constitutional law

BEFORE

1791 Congress adopts the US Bill of Rights, which is made up of the first 10 amendments to the US Constitution.

19th century No case law exists to define the practical application of the Fourth Amendment.

AFTER

1949 *Wolf v. Colorado* extends possible implementation of the exclusionary rule so that it does not apply where a state crime is being prosecuted in a state court.

1961 *Mapp v. Ohio* makes the exclusionary rule mandatory in all US courts, overturning *Wolf v. Colorado*.

1974 *United States v. Calandra* scales back the exclusionary rule in some circumstances; later rulings continue to refine applications of the rule.

The unanimous ruling of the US Supreme Court in *Weeks v. United States* in 1914 was an unequivocal endorsement of the constitutional absolutes of the 1791 US Bill of Rights. Specifically, it upheld the Fourth Amendment of the Bill, which asserted that “The rights of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated.” This was first time a US court had made a definitive

ruling on the Fourth Amendment to clarify precisely what it meant in legal terms.

Weeks v. United States

The case had seemed humdrum at first. In 1911, Fremont Weeks had been convicted in Kansas City, Missouri, of breaking gambling laws by mailing lottery tickets over state lines. Yet the Supreme Court overturned his conviction on the grounds that the evidence had been obtained illegally. Weeks's house had been searched twice

The **Bill of Rights** guarantees the **personal liberties** of all American citizens.



Vague drafting makes the **interpretation** of some **Amendments unclear**, particularly the Fourth, which guards **against unreasonable search and seizure**.



The exclusionary rule says that evidence obtained by an unlawful search or seizure is inadmissible in criminal trials.